ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	42nd Commission Meeting
DATE:	24 August, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	HRD proposal – HRS *Follow-up to 38th Commission meeting held on 3rd August 2021.*	HRS presented a proposal to implement HRD programs (both long-term & short-term trainings) in light of the pandemic and available budget of Nu. 2.7 mn for the current financial year *(power point slide attached)*. Considering the past trend in availing Master's program vis-a-vis current staff strength, the HRS apprised that the agency could afford to relieve maximum of 10 individuals for long-term training for in-campus study. Currently, five individuals are undergoing Master's program under various scholarships and two are due for commencement in early 2022. Besides this, the HRS also apprised on the list of available online Master's program offered by various Universities including some renowned Universities abroad with cost per program ranging from Nu. 0.9 mn to Nu. 2.6 mn. With regard to short-term trainings, given the available budget, the HRS presented some possible options to either conduct mandatory training or customized training for 'Advanced' level in line with the CBF or in-house pending short-term trainings or in-country face-to-face trainings and online courses. To this, the Commission directed the HRS to start implementing the proposals by incorporating the following specific comments: • Revisit threshold number that the agency can afford to relieve individuals for Masters and Undergraduate programs respectively in keeping with different modes of study (such as in-campus, online and mixed mode) and existing number of individuals undergoing such programs. • Seek staff's *Expression of Interest* to avail Master's program through online and/or mixed mode so as to enable the management to facilitate with necessary approvals/resources. Besides this, suggestions may also be sought on the areas of study that might complement the institutional mandate. However, directed to emphasize that it is a mere effort to understand the interest of the staff and not an assurance. • Retain all proposals on short-term trainings including mandatory, customized, pending in-house and in-country face-to-face trainings except for online courses as some

		can be availed free of cost. • With regard to customized short-term training, include 'Expert' level as also one of the target participants. Apart from this, the Commission also directed the HRS to conduct thorough analysis on the recently approved staffing by the RCSC against the proposed and existing staff. Further, determine staff ratio by position level and category.
2	AD non-declarant list – ADMD	The Commission endorsed the recommendations of the ADMD to drop, waive off and impose penalties to two, four and five non-declarants respectively *(list of non-declarants vis-à-vis recommendations attached)*. In addition, directed the ADMD to officially write to DHO, Wangduephodrang Dzongkhag mentioning on the need to exercise utmost diligence while attesting to a law enforcement agency. With regard to request from one of the non-declarants to allow payment of penalties in installments, the Commission approved the request and directed the ADMD to maintain the same if there is any similar request. However, the installments should be completed before next declaration period.
3	ATR & IE Status – DoPS	CMD, led by Director, DoPS, apprised the Commission on the status of IEs and ATRs. As of date, there are 58 IEs and 118 ATRs yet to be concluded wherein some ATRs are as old as 2017 *(power point slide attached)*. To this, the Commission approved proposed way forward from the Department to conclude pending IEs and ATRs with following specific directives: • Retain existing timeline of '30 days' to submit ATR to the ACC considering the urgency in disposing the complaints against the proposal to extend to '3 months'. • Use Head of Agencies (HoA) to follow-up and manage ATRs instead of having dedicated focal persons. Unlike AD and OIP, routing ATRs through focal person is not tenable given the nature and urgency of issue to be resolved. While introducing 'push button' system is being explored to ease follow-up and communication efforts, first line of communication on such matter must be maintained with the HoAs. For that matter, besides publishing in Annual Report and/or inserting as criteria under OIP, enhancing responsibility and accountability of HoAs to respond to ATRs need to be explored as one of the parameters in the on-going ethical leadership assessment that is being developed in collaboration with the RCSC. Or else, the Department may also explore in coming up with Annual ATR Performance by agencies that can be shared with the relevant authority including media for enhanced responsiveness and scrutiny. Further, explore possibility of including status of ATRs as one of the parameters in the handing-taking note of HoAs for enhanced communication and accountability.

		• Segregate status of the ATRs that are shared with the RAA based on the priority and routine audit so as to depict actual status of the ATRs. Alongside, the Department also presented the draft '*Advisory Note*' *(attached)* to facilitate agencies and ensure clarity while handling ATRs. To this, the Commission endorsed the draft with few comments: • Include relevant provisions from the ACAB 2011 to accord legal basis on the system of managing ATRs as well as legal consequences/accountability on HoA for failure to comply within the stipulated timeframe. Besides this, explore including a note on publishing such status in the media. • Specify on the need for the agency/s to take appropriate action/s and accordingly submit action-taken-report to the ACC. • Prepare similar *'Advisory Note'* on complaints that are shared for sensitization.
4	Draft Strategic Roadmap – Small Team	The Commission directed the Small Team to further enrich the Strategic Roadmap with following comments: • Need to categorize strategic versus operational plans and accordingly take out the later as either annexure or a separate internal document. Similarly, organizational structure may be moved towards the end of the roadmap. • Explore organizing the content of the roadmap by three broad mandates of the ACC and conduct SWOT analysis against each mandate. • Most of the interventions or milestones appear to be in-ward focused wherein the role of the ACC beyond its mandate is not very clear or requires further analysis about the outside environment from the perspective of contributing to build Bhutan as the 1st World Nation. • Interventions related to enhancement of integrity, discipline and accountability culture, preventing revenue leakage and cybercrime, and capitalizing technology, among others needs further brainstorming. • Revisit the title of the document to embrace 21st Century concept.
5	Others: i) Revised 12th FYP capital budget outlay – PPS	The Commission noted on the revised 12th FYP capital budget outlay of Nu. 258.89 million for the ACC against the initial approved outlay of Nu. 210.00 million. The revision in the outlay is mainly due to incorporation of Nu. 68.36 million as HRD budget. During the inception of the 12th FYP, due to lack of committed HRD budget neither from the development partners nor RGoB, the HRD budget for the ACC was reflected as '*to be mobilized*' in the plan document by the GNHCS. As a result, numerous

		issues/challenges were encountered while proposing annual budget for mandatory trainings from the RGoB even if the same was sanctioned in earlier financial years including securing budget from the development partners due to lack of indicative outlay in the plan document.

- Absent -

Commissioner

Commissioner

Chairperson